SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO RESOLUTION MEPC.329(76) (adopted on 17 June 2021)

FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO

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RESOLUTION MEPC.330(76) (adopted on 17 June 2021)

PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE

PROTOCOL OF 1978 RELATING THERETO

RESOLUTION MEPC.330(76)

(adopted on 17 June 2021)

PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE

PROTOCOL OF 1978 RELATING THERETO

(Exemption of unmanned non-self-propelled barges from certain survey and

certification requirements)

THE MARINE ENVIRONMENT PROTECTION COMMITTEE,

RECALLING Article 38(a) of the Convention on the International Mari time Organization concerning the functions of the Marine Environment Protection Committee conferred upon it by international conventions for the prevention and control of marine pollution from ships,

RECALLING ALSO article 16 of the International Conven tion for the Prevention of Pollution from Ships, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the

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from Ships, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the Organization the function of considering and adopting amendments thereto,

HAVING CONSIDERED, at its seventy -sixth session, proposed Annexes I and IV concerning the exemption of unmanned non -self-propelled (UNSP) barges from survey and certification requirements, which were circulated in accordance with article 16(2)(a) of MARPOL,

1 ADOPTS, in accordance with article 16(2)(d) of MARPOL,

MARPOL Annexes I and IV, the text of which is set out in the annex to the present resolution;

2 DETERMINES, in accordance with article 16(2)(f)(iii) of MARPOL, that the amendments shall be deemed to have been accepted on 1 May 2022 unless prior to that date not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet have communicated to the Organization their objection to the amendments;

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not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet have communicated to the Organization their objection to the amendments;

3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL, the said amendments shall enter into force on 1 November 2022 upon their acceptance in accordance with paragraph 2 above;

4 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL,

to transmit certified copies of the present resolution and the text of the amendments contained

in the annexes to all Parties to MARPOL;

5 REQUESTS ALSO the Secretary-General to transmit copies of the present resolution

and its annexes to Members of the Organization which are not Parties to MARPOL.

RESOLUTION MEPC.330(76) (adopted on 17 June 2021)

PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE

PROTOCOL OF 1978 RELATING THERETO- 2 -

ANNEX

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PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE

PROTOCOL OF 1978 RELATING THERETO- 2 -

ANNEX

(Exemption of UNSP barges from certain survey and certification requirements)

Regulation 1

Definitions

1 A new paragraph 40 is added as follows:

"40 Unmanned non-self-propelled (UNSP) barge means a barge that:

.1 is not propelled by mechanical means;

.2 carries no oil (as defined in regulation 1.1 of this Annex);

.3 has no machinery fitted that may use oil or generate oil residue

(sludge);

.4 has no oil fuel tank, lubricating oil tank, oily bilge water holding tank

and oil residue (sludge) tank; and

.5 has neither persons nor living animals on board."

Regulation 3

Exemptions and waivers

2 Paragraph 2 is replaced by the following:

"2 Particulars of any such ex